

25NWCV00196 25NWCV00196

County: los-angeles

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Case Number: 25NWCV00196 Hearing Date: July 9, 2026 Dept: R

#16

TRAN v. LA

MIRADA POST ACUTE, LLC, ET AL.

CASE NO.: 25NWCV00196

HEARING: Thursday, July

9, 2026, at 9:30 AM

Plaintiff KIM TRAN's Motion to Compel Further Deposition of
Donnabelle Valido is GRANTED.

Plaintiff to give notice.

BACKGROUND

On January 15, 2025, Plaintiff KIM TRAN, by and through her
Attorney in Fact, Francis Tran ("Plaintiff") filed this elder abuse
action against Defendants LA MIRADA POST ACUTE LLC; SUN MERIDIAN MANAGEMENT
SERVICES LLC; FRANK D. JOHNSON; DAVID JOHNSON; and DOES 1 through 250.

On October 9, 2025, Plaintiff filed the operative Second
Amended Complaint ("SAC").

Plaintiff's SAC alleges that "about August 2024, KIM TRAN was admitted to

the FACILITY suffering from a prior stroke. As a result, KIM TRAN'S family was unable to provide the level of care she required at home. KIM TRAN required assistance with her activities of daily living. KIM TRAN suffered from both side weakness and was unable to walk. [¶] On or about December 28, 2024, KIM TRAN was sexually assaulted by a FACILITY employee who touched KIM TRAN'S breasts and put his fingers inside KIM TRAN'S vagina without her consent.... Additionally, Saul Tapia forcibly grabbed KIM TRAN's arm and tried to make KIM TRAN touch his genitals but KIM TRAN refused and pushed her call button." (SAC ¶¶ 32-33.)

Plaintiff's SAC asserts the following causes of action:

1. Elder Abuse;
2. Fraud
(Misrepresentation and Concealment); and
3. Violations
of Health and Safety Code § 1430(b)

On June 11, 2026, Plaintiff filed the instant motion to Compel Further Deposition of Donnabelle Valido ("Valido") and documents responsive to Request for Production Number 2.

MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS

With respect to requests for production of documents, there are only three appropriate ways to respond: (1) a statement that the party will comply with the request, (2) a statement of inability to comply, or (3) an objection. (CCP §2031.210.)

Defendant provided a privilege log in response to Request for Production of Documents No. 2. Defendant's privilege log describes ten privileged documents.

Privacy and Privilege

The right of privacy protects a person's work history and personnel records. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1427.) However, third party's right of privacy is not absolute and may be abridged when there is a compelling and opposing state interest. (Board of Trustees, Etc. v. Superior Court (1981) 119 Cal.App.3d 516, 525; see also Binder v. Superior Court (1987) 196 Cal.App.3d 893, 900.) One such competitive state interest is facilitating in the ascertainment of truth pertaining to legal proceedings. (Binder, supra, 196 Cal.App.3d at 900.)

Further, if any documents are withheld pursuant to a claimed privilege, the responding party must "(A) identify with particularity [the] document..., and (B) set forth clearly the extent of, and the specific ground for the objection..., the particular privilege... [and] [i]f an objection is based on a claim that the information sought is protected work product [under C.C.P. § 2018.010], that claim shall be expressly asserted." (C.C.P. § 2031.240(b).) The purpose of this requirement to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production is to permit a judicial evaluation of the claim of privilege. (Hernandez v. Superior Court, (2003) 112 Cal.App.4th 285, 292.)

Defendant's claimed privilege objections are inapplicable. Defendant asserts the following claimed privileges and objections for documents one through ten: "Quality Assurance privileges in violation of California Evidence Code §1151; Evid. Code, § 1157; 42 CFR § 483.75, 32 USC § 1396r."

First, Cal. Evid. Code § 1151 deals with the admissibility of evidence pertaining to subsequent remedial measures. (Id.) Cal Evid. Code § 1151 does not prohibit discovery.

Second, Cal. Evid. Code § 1157 states:

"Neither the proceedings nor the records of organized committees of medical, medical-dental, podiatric, registered dietitian, psychological, marriage and family therapist, licensed clinical social worker, professional clinical counselor, pharmacist, prehospital emergency medical care person or personnel, or veterinary staffs, or of a peer

review body, as defined in Section

805 of the Business and Professions Code, having the responsibility of evaluation and improvement of the quality of care rendered in the hospital, or for that peer review body, or medical or dental review or dental hygienist review or chiropractic review or podiatric review or registered dietitian review or pharmacist review or veterinary review or acupuncturist review or licensed midwife review or prehospital emergency medical care person or personnel review committees of local medical, dental, dental hygienist, podiatric, dietetic, pharmacist, veterinary, acupuncture, chiropractic, or prehospital emergency medical care person or personnel societies, marriage and family therapist, licensed clinical social worker, professional clinical counselor, or psychological review committees of state or local marriage and family therapist, state or local licensed clinical social worker, state or local licensed professional clinical counselor, or state or local psychological associations or societies or licensed midwife associations or societies having the responsibility of evaluation and improvement of the quality of care, shall be subject to discovery.”

(Id.)

Defendant contends that “these documents are protected under Evidence Code § 1157 as they were prepared at the behest of the Quality Assurance Committee.” Not so. Indeed, Ms. Valido's deposition testimony states she was not a member of a Quality Assurance Committee. (Reply, Ex. 3 at p. 66:8-10.) Furthermore, Ms. Valido testified that she did not exchange e-mails with Stacy Brown as a member of a Quality Assurance Committee. (Reply, Ex. 3 at p. 66:11-14.) Similarly, Ms. Valido testified that Brenda Rojas did not serve as a member of a Quality Assurance Committee (Reply, Ex. 3 at p. 69:25-70:2.)

Moreover, Defendant fails to establish it is a “peer review body” as defined in Business and Professions Code § 805(a)(1)(B).

Defendant failed to meet its burden to show the requested documents are privileged under Cal. Evid. Code § 1157.

Privacy

Defendant contends disclosing document three, “Email from Brenda Rojas to Stacy Brown, Walker Pulido, Donnabelle Valido, Corrine Perry, and Talmadge Cline regarding alleged abuse investigation regarding resident

other than Plaintiff", would infringe on a third-party's privacy right. The Court believes any third-party privacy rights are adequately protected through redaction of both the individual's and employee's identifying information.

Attorney Client Privilege

Lastly, Defendant contends document one, "Email from Stacy Brown to Donnabelle Valido, Corrine Perry, Julieta Echeverria (Counsel), Micah Rhead, Brenda Rojas, and Josephine Drew regarding investigation of alleged abuse of Plaintiff", is protected by attorney client privilege.

The attorney-client privilege authorizes a client to refuse to disclose, and to prevent others from disclosing, confidential communications between attorney and client. (Mitchell v. Superior Court (1984) 37 Cal. 3d 591, 599.) Attorney-Client privilege applies to communications between corporate employees and counsel, made at the direction of corporate superiors to secure legal advice." (U.S. v. Chen (1996) 99 F.3d 1495, 1502.)

Here, Defendant does not establish the email in document one involved a communication made at the direction of a superior to secure legal advice.

Plaintiff KIM TRAN's Motion to Compel Defendant Further Deposition of Donnabelle Valido is GRANTED. Donnabelle Valido shall appear for deposition within 30 days of the Court's issuance of this order. Defendant shall provide documents responsive to Request for Production of Documents No. 2 within 30 days of the Court's issuance of this order.

Sanctions

CCP § 2031.310(d) provides that for mandatory monetary sanctions "against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." § (Id.)

Reasonable sanctions are GRANTED in the amount of \$400.00. Defendant LA MIRADA POST ACUTE LLC and its Counsel of record are ORDERED to pay Moving Party and their Counsel of

Record sanctions in the amount of £\$400.00 by no later than 60 days from the date of the Court's issuance of this Order. This date may be extended by agreement of the parties.